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TICKTALK

Privacy Policy

Last Updated: December 30, 2023

What is TickTalk?

TickTalk Tech LLC ("TickTalk," "we," "us," and "our") are the creators of a wireless children's wearable smartwatch phone and locator that helps parents and guardians communicate with, monitor, track, and locate their child. All pairing, activation, and communication between our TickTalk smartwatches occur within our parental control TickTalk App.

More information on how the Service (collectively the TickTalk Website, TickTalk App, and TickTalk Smartwatches) operates is located here and your participation and use of the Service are governed by our Terms of Service ("Terms").

TickTalk Tech LLC's Privacy Principles

Your privacy is important to us and a responsibility we take seriously, so we encourage you to review our Privacy Policy before using our services. We've tried to keep it as simple yet thorough as possible to give you complete transparency into our products. The guiding principles that help us protect both you and your child's information include:

- TickTalk Tech LLC is the only party that can access any of your Child Information and will never disclose, share, sell, or rent your Child's Personal Information with any third parties, marketers, or advertisers
- All third party technology that is integrated into TickTalk's App and smartwatches are provided to us via API and those Third Parties do not have access to your Child's Personal Information and/or App User's Personal Information

Support

subprocessor, and is necessary to provide our services

- We do not use or allow third party advertisers on our children's TickTalk smartwatches for children or our TickTalk App
- We do not view or own any content you create on your TickTalk smartwatch including message content, phone calls, video calls, photos, videos, or voice recordings
- Personal Information collected from Children using our smartwatches is never used for behaviorally-targeted advertising
- Based on the TickTalk smartwatch and TickTalk App features,
  Children cannot make any Personal Information publicly available or make any public disclosures on the TickTalk Website or Services
- Children can only communicate with Contacts in the following ways: A) As directly entered and approved by the Parent ("Admin User") in the TickTalk App, B) By use of the Dial Pad feature if the feature has been enabled by the Parent ("Admin User") in the TickTalk App, or C) By Child use of the Add Friends feature to connect and communicate with another TickTalk smartwatch within six (6) feet if the feature has been enabled by the Parent ("Admin User")
- We collect the minimal amount of Child Personal Information necessary to use our Devices or Services
- We use security best practices to protect all TickTalk user information for Parents and/or Guardians and Children including end-to-end encryption and 24/7 security over our backend

What this Privacy Policy Covers

Our Privacy Policy explains:

- What information we collect and why we collect it
- How we obtain parental consent with clear notice within the TickTalk App and through email confirmation upon account creation
- How we use and share that information
- The choices and rights you have, including how to access, update and delete your information, and remove your information from TickTalk Services

(collectively, the "Service") including:

- **"TickTalk Website" (https://www.myticktalk.com)**: The TickTalk Website is not directed at Children and is used as an e-commerce platform for Parents and/or Adults 18+ years of age to research and purchase our Products.
- **Our Mobile Applications (the "TickTalk App"):** The TickTalk App is directed primarily at Parents and/or Guardians and Adults 18+ years of age as a means to communicate with the TickTalk smartwatch user. Any App Users under the age of 13 will be required to submit a Parent email address to use the TickTalk App as the collection and use of data from a Child will require parental consent.
- **TickTalk Smartwatch (the "TickTalk Device(s)"):** Parents and/or Guardians will be required to pair the TickTalk Device to the TickTalk mobile App, at which time consent will be collected before your Child can use their TickTalk Device. Our TickTalk smartwatches are directed at Children and the collection, use, and sharing of Personal Information are detailed in this Privacy Policy.

In this policy, you will see the recurrence of certain terms:

- "**Parents**" are considered parents, guardians, or other users who are legally authorized to act on behalf of parents under state or federal law. Parents will also be referred to as the **"Admin User"** which refers to the first person to pair to your child's TickTalk smartwatch, which is almost always the Parent and/or Guardian.
- **"Children"** or **"Child"** are considered users of the TickTalk smartwatch under the age of 13 years of age who require parental consent to use our Services.
- **"Parent-Approved App Users (Contacts)"** are considered individuals who have downloaded the TickTalk App and have been approved by the Parent and/or Guardian to use voice calling, video calling, and messaging with your Child.
- **"Parent-Approved Contacts"** are considered the collective individuals who the Parent and/or Guardian has granted consent to communicate with their Child including App Users and Phone Book Contacts (individuals who the Parent and/or Guardian has added their phone number to their Child's phone book to use voice calling exclusively).

Our Privacy Policy is designed to provide transparency into our privacy practices and principles. For Parents and/or Guardians and Children, we have a short video that highlights the most important details of our Privacy Policy that they should know

By using the TickTalk Service, you acknowledge that you accept and agree to this Privacy Policy and Terms of Service. By agreeing to this Privacy Policy, you agree to use all features and functionalities on TickTalk Devices and/or Services as intended and not for malicious, inappropriate, or otherwise harmful purposes. If you do not accept this Privacy Policy, you may not access or otherwise use TickTalk Services and/or Devices.

TickTalk Certifications, Commitments & Adherence

TickTalk Tech LLC has also committed to a set of principles intended to safeguard Children's privacy, including responsible protection and transparent handling of Children's Personal Information.

We participate in the iKeepSafe Safe Harbor program. TickTalk Tech LLC has been granted the iKeepSafe COPPA Safe Harbor seal signifying its Website, Devices, and Apps have been reviewed and approved for having policies and practices surrounding the collection, use, maintenance, and disclosure of Personal Information from Children consistent with the iKeepSafe COPPA Safe Harbor program guidelines.

TickTalk participates in the iKeepSafe Safe Harbor program. If you have any questions or need to file a complaint related to our privacy policy and practices, please do not hesitate to contact the iKeepSafe Safe Harbor program at COPPAprivacy@ikeepsafe.org

How TickTalk Devices Work

Communication Methods By Children

TickTalk Devices work like standalone cell phones and are unlocked devices that can work with GSM carriers worldwide. All pairing, activation, and communication from our TickTalk Devices occurs with our parental control TickTalk App. Children can communicate with Approved Contacts, between TickTalk Devices, and Non-Approved Contacts (if particular settings are disabled). Children can communicate with individuals via:

- **Watch to Watch (i.e. Device to Device)**: Your Child can contact other Children with TickTalk Smartwatches that have been added by using the Add Friends feature if they are within six (6) feet of each other or by manually entering another TickTalk

- **Watch to Approved Cell Phone Users Using the TickTalk App**: The Parent ("Admin User") may approve Contacts who have downloaded the TickTalk App to allow your Child to use two-way voice calling, video calling, and/or in-app messaging.
- **Watch to Approved Cell Phone and/or Landline Numbers**: Parents and/or Guardians ("Admin User") may enter cell phone and/or landline numbers on any cellular phone carrier to allow your Child to contact using two-way voice calling.
- **Watch to Non-Approved Cell Phone and/or Landline Numbers**: If the Dial Pad is enabled and the Firewall is disabled, Children may access two-way calling with any outside third party phone number including non-TickTalk Users or individuals who have not received parental consent. If the Dial Pad is disabled and the Firewall is enabled, only Parent-Approved Contacts will be able to communicate with your Child.

As TickTalk Devices are created for Children, we have taken additional steps to give Parents and/or Guardians a "Locked" Device upon receiving. These steps include:

- Creating a **Firewall Feature** that Parents and/or Guardians should immediately enable in the TickTalk App Settings after pairing the Parent ("Admin User") account with your Child's TickTalk Device to block any unknown numbers from contacting your Child.
- Prompting Parents and/or Guardians to disable the **Dial Pad** feature to prevent Children from calling landlines and phone numbers outside of the TickTalk App or without parental consent. Parents and/or Guardians can choose to enable the Dial Pad to allow your Child to call any external phone number. Factory default is turned OFF.
- **NOTE**: Dial Pad works exactly like the dial pad on your cell phone and will show your Child's Phone Number if calling an outside line (i.e. 1-555-555-5555). External phone numbers called will not have access to your Child's Name as this is not a service we enabled with cellular providers.
- Automatically setting the **Add Friends** feature as disabled to prevent your Child from adding other TickTalk Devices within six (6) feet or by sharing their TickTalk Device TTID Identifying Number. While Parents and/or Guardians will receive a notification for any TickTalk Devices added manually or by using the Add Friends feature (or "Radar Scanning" as it is called locally on the TickTalk Device) in the

Parents and/or Guardians can choose to enable the Add Friends feature to allow your Child to add other TickTalk Devices or manually enter another TickTalk Device TTID Identifying Number to add as a Contact. Factory default is turned OFF.

- Automatically setting the **911 Emergency Response** feature as disabled to prevent Children from accidentally calling 911. Parents and/or Guardians can choose to enable 911 calling to allow your Child to access emergency response from your local emergency services. Factory default is turned OFF.

Types of Contacts Children May Communicate With Using TickTalk Devices

There are **five** types of Contacts and/or Users to consider when using TickTalk Services and/or Devices. All communication from your TickTalk Devices occurs within your TickTalk App. These Contacts can communicate directly with your Child upon receiving parental consent and approval:

- **Admin User (Parent and/or Guardian)**: The Admin User is the first person to pair to the Device and create an account for your Child. The Admin User is almost always the Parent and/or Guardian of the Child. The Admin User can also use Remote Answer to prompt your TickTalk Device to call you back within one (1) minute with your end muted. This feature was included for emergency purposes only and is only available to the Admin User and Full Access Users.This user will have Full Access to your Child's Personal Information including:
- Name
- Profile Picture and/or Avatar
- Phone Number
- Birth Date (Optional)
- Gender (Optional)
- Precise Location
- Past Precise Locations (if History Route is enabled)
- Message Content with the Admin User
- Group Chat Content (if the Admin User is included in that Group Chat conversation)

- Parent-Approved App Users (“Contacts”) and Phone Book Contacts
- Blocked Watch SMS Text Log
- Activity Tracker and Daily Step Goals
- Device and/or App Settings

Parent-Approved App Users (“Contacts”) Age 18+: As a Parent ("Admin User"), you may invite others to download the TickTalk App to become a Parent-Approved App User (“Contact”) to use voice calling, video calling, and in-app messaging with your Child. To do so, the individual would download the TickTalk App from the Google Play or Apple Store and request to add your Child’s TickTalk Device by either scanning the Device QR code found under the Device settings or by entering the TTID identifying number if provided by the Parent.

Once the Contact has been approved by the Parent ("Admin User") as an Approved App User (“Contact”), the information the Parent (“Admin User”) provided in the “name” box upon creating a Child Account will be visible. If the Parent ("Admin User") has not entered any information into the “name” box upon creating a Child Account, the Device IMEI number will be visible without any Child Personal Identifying Information.

Parent-Approved App Users (“Contacts”) have the option to delete their account at any time and/or can be removed by the Parent (“Admin User”) at any time. The Parent (“Admin User”) will be notified of any Contacts adding your Child’s TickTalk Device and prompted to set the individual access levels. The Parent (“Admin User”) can choose between *Full Access* or *Limited Access* for each App User (“Contact”).

- **Full Access App Users (“Contacts”)**: Parent-Approved App Users (“Contacts”) who have Full Access have the same access level as the Parent (“Admin User”). Full Access App Users are typically Parents, Guardians, and close family members (i.e. Grandparents) who need access to locating capabilities or the ability to edit your Child’s TickTalk Device settings. Full Access App Users can view and/or edit your Child’s Personal Information including:

Child Name

Child Profile Picture and/or Avatar

Child Gender (optional)

Child Precise Location

Child Past Precise Locations (if History Route is enabled)

Message Content with that particular Parent-Approved App User (“Contact”) which may contain Personal Information

Group Chat content involving that particular Parent-Approved App User (“Contact”) which may contain Personal Information

Video Content with that particular Parent-Approved App User (“Contact”) from real-time 2-Way FaceTalk Video Calling which happens in real-time and cannot be recorded and/or stored, but may contain Personal Information

Child Device Call Logs

Child’s Reminders

Child’s Parent-Approved App Users (“Contacts”) and Phone Book Contacts

Blocked SMS Text Log for your Child’s Device

Child’s Daily Step Goals and Current Steps

Child’s Device and/or App Settings

Greeting Card Content sent to that particular Parent-Approved App User (“Contact”) which may contain Personal Information

Full Access users can also use Remote Answer to prompt your TickTalk Device to call you back within one (1) minute with your end muted. This feature was included for emergency purposes only and is only available to the Admin User and Full Access Users.

- **Limited Access App Users (“Contacts”):** Parent-Approved App Users (“Contacts”) who have Limited Access, such as extended family members and/or friends, can view your Child’s Personal Information including:

Child Phone Number

Message Content with that particular Parent-Approved App User (“Contact”) including any Group Chats involving the Parent-Approved App User (“Contact”) which may contain Personal Information

Video Content with that particular Parent-Approved App User (“Contact”) from real-time 2-Way FaceTalk Video Calling which happens in real-time and cannot be recorded and/or stored, but may contain Personal Information

Greeting Card Content sent to that particular Parent-Approved App User (“Contact”) which may contain Personal Information

- **Parent-Approved App Users ("Contacts") Under The Age of 13:** A Child under the age of 13 may download the TickTalk App on their personal cell phone and request to be a Parent-Approved App User (“Contact”) and communicate with a Child who owns a TickTalk Device. Any App Users under the age of 13 will be required to submit a Parent email address to use the TickTalk App as the collection and use of data from a child will require parental consent. Once parental consent was received, the Parent-Approved App User (“Contact”) Under the Age of 13 would then be granted Full Access or Limited Access per the above and would have access to either A) Full Access viewing of the Device User Personal Information or B) Limited Access viewing of the Device User Personal Information as stated above in *Parent-Approved App Users (“Contacts”) Age 18+.* To create an account, the Parent-Approved App User (“Contact”) under the age of 13 would be asked to provide personal information including:
- Name and/or Nickname
- Email Address and/or Phone Number which will be used as the login method
- Password (We do not have access to this information)
- Date of Birth to trigger parental consent methods
- Relationship to your Child or TickTalk Device User
- Parent’s Email Address for Parental Consent before using the TickTalk App
- **Phone Book Contacts**: As a Parent ("Admin User"), you can add phone numbers to your Phone Book Contacts to allow your Child to access voice calling outside of the

the phone numbers you provide within the TickTalk App, and will also treat this as Personal Information in accordance with this Privacy Policy. If these individuals would like to request deletion of their information, they may contact the Parent ("Admin User") directly to delete their phone number from the TickTalk App. These Contacts can view your Child's Personal Information including:

- Child Phone Number
- **Between TickTalk Devices Added using the Add Friends Feature**: Your Child can add other TickTalk Devices within six (6) feet as a Contacts using the Add Friends feature or by manually adding with the Device TTID number which can be found in the Device Settings. Add Friends Contacts do not require parental approval to communicate with your Child, but the Parent ("Admin User") will receive notification for any Contacts added using the Add Friends feature. Parents and/or Guardians may remove the Contact locally from your Child's TickTalk Device if they do not approve of the Contact by going into Messages > Contacts > Select the Contact > Delete. The Parent ("Admin User") can also disable the Add Friends feature from the TickTalk App under Settings > Add Friends > disable to only allow Parent-Approved Contacts to communicate with your Child's TickTalk Device. These Contacts can view Personal Information including:
- Child Name
- Child Profile Picture and/or Avatar
- Child Phone Number
- Message Content with that particular Contact including any Group Chats involving that particular Contact
- Video Content with that particular Contact from real-time 2-Way FaceTalk Video Calling which happens in real-time and cannot be recorded and/or stored, but which may contain Personal Information
- Greeting Card Content sent to that particular Contact which may contain Personal Information

Child Personal Information is not shared with any Contacts that have not been either:

- Approved with parental consent as Parent-Approved App Users ("Contacts")

To add your Child's TickTalk Device, the Contact will need your Child's TickTalk Device IMEI identifying number to complete pairing. No Contacts will be able to add your Child's TickTalk Device without either the IMEI identifying number or owning another TickTalk Device and being within six (6) feet of your Child's TickTalk Device to use the Add Friends feature if the Parent ("Admin User") has enabled the Add Friends feature under the TickTalk App Settings.

Parental Controls

The TickTalk App and TickTalk Device are paired to give Parents and/or Guardians control over the features and functionalities your Child is using on their TickTalk Device. The Parental Controls include:

Approve who your Child is contacting including:

- Phone Book Contacts using voice calling
- Approved App Users ("Contacts") using voice calling, in-app messaging, and video calling
- Add Friends Contacts using voice calling, in-app messaging, and video calling
- **Note**: Parents and/or Guardians cannot remotely remove Add Friends contacts from their TickTalk App, but will receive a notification in the TickTalk App of any contacts added. Parents can remove the contact on your Child's TickTalk Device under Messaging or can choose to disable the feature completely under their TickTalk App Settings > Add Friends. Factory settings for Add Friends is OFF and must be enabled by the Parent to use.

Approve your Child's contact requests under Approved App Users

Set individual access levels (Full Access or Limited Access) for all App Users

Save an Emergency SOS contact for your Child's TickTalk Device to automatically call if the red button is held for five (5) seconds

Save two (2) Shortcut Dialing Icons to appear on your Child's TickTalk Device home screen

Set location tracking preferences to update your Child's location at a more frequent duration

Remotely reboot or turn off your Child's TickTalk Device

Create unlimited custom preset text responses for your Child to use on their TickTalk Device

Save Do Not Disturb time frames to freeze all notifications and alerts (used primarily during school hours)

Remote Answer to prompt your TickTalk Device to call you back within one (1) minute with your end muted. This feature was included for emergency purposes only and is only available to the Admin User and Full Access Users.

View your Child's TickTalk Device call log to view outgoing and incoming calls

View blocked SMS text requests to your Child's TickTalk Device that were not delivered to your Child

Save a TickTalk Device password to protect your Child's Personal Information and data in the case your TickTalk Device is lost or stolen

Set daily step goals for your Child in the Activity Tracker

Perform a system reset on your Child's TickTalk Device to revert to factory settings

Disable iHeartRadio Family streaming music (only available for U.S. customers)

Set daily music limits for iHeartRadio Family (only available for U.S. customers)

Set data usage or Wi-Fi usage settings for iHeartRadio Family (only available for U.S. customers)

Set Wi-Fi only settings for FaceTalk Video Calling to preserve data

Select features your Child can use on their TickTalk Device including:

Dial Pad: Allows your Child to call any external phone numbers if enabled

Firewall: Blocks unknown numbers from calling your Child if enabled

Calculator

Deactivate Watch: Deactivates your Child's TickTalk Device in the case it is lost or stolen and unbounds the Device from your TickTalk App to limit any future feature usage if enabled

Call 911: Allows your Child to call your local emergency services if enabled

Watch Power Off Control: Allows your Child to turn off their TickTalk Device manually if enabled (your Device cannot be turned off by your Child if this feature is disabled)

- Choose which settings your Child can change directly from their TickTalk Device including:
- Edit Date and Time Settings
- Edit Cellular Data Settings
- Edit Language Settings
- Edit Sound Modes
- Set their Device on Airplane Mode, disabling you to contact or locate their TickTalk Device
- Perform Watch Reset or a system reset

How We Protect Children's Personal Information

Protecting Children's privacy is of the utmost importance to us - which is why we have received iKeepSafe's Children's Online Privacy Protection ("COPPA") Safe Harbor seal, signifying that this Privacy Policy and our practices with respect to the operation of the Service have been reviewed and approved for compliance with iKeepSafe's COPPA Safe Harbor program. COPPA protects the online privacy of Children under the age of 13 ("Child" or "Children"); for more information about COPPA and protecting Children's online privacy, please visit OnGuard Online. We've also made a short video for Children and Parents that highlights the most important details of our Privacy Policy they should know about.

Parental Choices & Parental Consent

parental consent. Parents and/or Guardians will be required to review our consent email and provide a verification code to complete their Child's account registration. Upon receiving parental consent, Parents and/or Guardians will be able to pair with and activate their TickTalk Device for their Child. For any individuals under the age of 13 who wish to create a TickTalk App account on their personal cell phone to communicate with another Child who owns a TickTalk Device, they will be required to submit a Parent email address to receive parental consent before registering for a TickTalk App account.

If you are the Parent of a Child who is using a TickTalk Device and have also given parental consent to create a Child Account, you may access, review, correct, or delete any of your Child's Personal Information in the TickTalk App by editing directly in the TickTalk App > Settings or by contacting us at support@myticktalk.com.

For any information that the Parent and/or Guardian asks TickTalk Tech LLC to access, review, correct, and/or delete on your behalf, we will use commercially reasonable efforts to process requests in a timely manner consistent with applicable law. We will ask you to verify your identity as the Parent and/or Guardian, for example by requiring that you provide acceptable forms of personal identification, providing us your device identifying numbers, or your purchase order number for us to cross-reference with our records.

Any changes to this Privacy Policy or changes to the collection, use, or disclosure practices to which the Parent and/or Guardian has previously consented will be communicated to the Parent and/or Guardian using email communication and/or push notifications within the TickTalk App.

Refusing Parental Consent

If a Parent and/or Guardian refuses the collection of any Child Personal Information or data, both the Parent and/or Guardian and your Child cannot use the TickTalk Services or Devices. In this case, the Parent and/or Guardian can return the Device within thirty (30) days of purchase for a full refund.

If you have already created an account with TickTalk, the Parent and/or Guardian may delete any of your Child's Personal Information in the TickTalk App by editing directly in the TickTalk App > Settings or by contacting us at support@myticktalk.com. Additionally, at any time, you can refuse to permit us to collect further Personal Information from

at support@myticktalk.com.

What Information Does TickTalk Collect from Children, and How Is It Used?

We do not share any Child Personal Information publicly. Children Users cannot share any information publicly outside of the TickTalk Device or Services. The statements that we make regarding the information we collect from or about Children and how we use this information apply equally to all Children regardless of their age. Accordingly, where this Privacy Policy references Children or any information collected from or about Children our Privacy Policy applies to Children under 13 years of age as well as Children 13 years of age and above.

All pairing, activation, and communication from our TickTalk Devices occurs with our parental control TickTalk App. We will automatically collect the physical precise location from your Child's TickTalk Device at all times when activated. We collect the minimal amount of information from Children necessary to use our Service. This information is necessary to enable us to comply with legal obligations and given our legitimate interest in being able to provide and improve the Service and for security and safety purposes. Personal Information and location-based information are treated as sensitive information and are subject to a heightened standard for sharing.

Location-Based Information Collected Through the TickTalk Service

The TickTalk Device and/or Services automatically and continuously collect information about the physical location of the TickTalk Device when activated. This information is acquired through numerous methods, including GPS and cell towers, which are enhanced over time as we follow the TickTalk Device, collect more information, and improve our tracking. You may not disable location-based data collection from the TickTalk Device and/or Services. We can access latitude and longitude in our backend of the TickTalk Device if needed by a Parent and/or Guardian with parental consent.

Child Personal Information Collected from Parent Created Account

Once a Parent and/or Guardian creates an Admin Account on the TickTalk App, they are prompted to create a Child Account to activate and begin using their TickTalk

and set privacy settings for your Child. Once a Parent creates an App account, they will be prompted to submit Child information to create a Child Account with the following information:

- **Child's Name and/or Nickname (optional):** Your Child's name is used for messaging, video calling, phone calls, and/or Greeting Cards sent to/from Parent-Approved App Users ("Contacts"). Parents and/or Guardians can opt to put in First Name, Nickname, or a non-identifying text as a placeholder.
- **Child's Birth Date (optional):** Your Child's Birth Date is used for Greeting Cards to send the Parent ("Admin User") a reminder to send a Birthday Greeting Card. This information may be used for Research & Development purposes in a non-identifiable manner (i.e. information about our users that we combine so it no longer identifies or references an individual user). Parents and/or Guardians can also select None to not provide this information.
- **Child's Gender (optional):** Your Child's Gender is used for Research & Development purposes in a non-identifiable manner (i.e. information about our users that we combine so it no longer identifies an individual Child user). Parents and/or Guardians can also select None to not provide this information.
- **Child's Profile Picture (optional)**: Your Child's Profile Picture is used for messaging, video calling, and phone calls sent to/from the Parent-Approved App Users ("Contacts"). Parents and/or Guardians can opt to put in a generic default avatar image as a placeholder.

Child Personal Information Shared with Parent-Approved App Users ("Contacts")

After a Parent ("Admin User") has created your Child's Account, your Child can exchange the following Personal Information when communicating with the Parent ("Admin User") and Parent-Approved App Users ("Contacts") while using their TickTalk Device:

- **Child Submissions of Photos or Other Images**: Once a Child accesses their Parent-created Child Account, they can take and share photos (which may contain Personal Information) in the end-to-end encrypted Secure Messaging Center with Parent-Approved Contacts.

Child may send messages (which also may contain Personal Information) with Parent-Approved Contacts.

- **Child Location**: Parents and/or Guardians and Parent-Approved App Users (“Contacts”) who have been granted Full Access by the Parent ("Admin User") will be able to view your Child’s real-time precise location and past precise locations (if History Route is enabled) through the TickTalk App. At any time, a Parent ("Admin User") can limit individual access levels for Parent-Approved App Users (“Contacts”) to remove all location viewability or remove the contact altogether by unbounding the Parent-Approved App Users (“Contacts”). Location-based data collection cannot be turned off at any time while using the TickTalk Services.

In addition to the information entered by the Parent (“Admin User”), we do automatically collect some information which you can read more about in the *Information Collected Automatically* section.

We use this information to provide the Service to your Child, for security and safety purposes, or as required by law or to enforce our Terms. We will not require Children to provide more Personal Information than is necessary to use the Service or Device. If we discover that we have collected information from a Child in a manner inconsistent with COPPA, we will take appropriate steps to either delete the information or immediately seek the Parent's consent for that collection.

We do not disclose any Personal Information about Children to third parties, except to subprocessors necessary to provide the Service, as required by law, or to protect the security of the Service or other users. We encourage you to read through our full list of Third Party Subprocessors for more information.

Information collected from Children (including Personal Information and information collected automatically) is never used or disclosed for third-party advertising. Additionally, Personal Information collected from Children is never used for behaviorally-targeted advertising to Children. Lastly, Children's Personal Information is never sold or rented to anyone, including marketers or advertisers. TickTalk Tech LLC’s collection of information from Children is further subject to our Terms. Parents and/or Guardians should review carefully and understand the Terms before permitting Children to use the TickTalk Products and/or Devices.

Act ("COPPA") rules for parental consent prior to a Parent and/or Guardian activating and setting up our Devices. Before creating an account for a Child and using our TickTalk Devices, Parents and/or Guardians must certify that they reviewed and consented to our Privacy Policy and that we collected the appropriate parental consent. We rely on verifiable parental consent from the Parent and/or Guardian to use TickTalk's Services and require consent via email and within our TickTalk App upon the Parent account registration process.

Once the Parent ("Admin User") has created a Child Account and provided us with verifiable parental consent, then the following information may be collected from your Child locally on their TickTalk Device. This data is stored locally on the Device and is not available in the TickTalk App or to TickTalk Tech LLC. Your Child can also choose to share this information with Parent-Approved App Users ("Contacts") and/or other TickTalk Devices your Child has added as a Contacts using the Add Friends feature:

- **Child Created Photographs and Videos**: Photos (which may contain Personal Information) and/or Videos can be stored locally on the Device. Due to size, videos cannot be shared with any Contacts and will only be stored locally on your Child's TickTalk Device.
- **Child Created Message Content and Voice Recordings**: Your Child may create and send messages and voice recordings (which also may contain Personal Information) in our end-to-end encrypted Secure Messaging Center with Contacts.
- **Child Submission of Photo or Other Image via the Secure Messaging Center**: Your Child can share photos, emojis, GIFs, voice recordings, preset text responses, or other representations of themselves within the Secure Messaging Center with Contacts. Your Child may share Photos in our end-to-end encrypted Secure Messaging Center with Contacts.

What Children's Information is Visible to TickTalk Tech LLC?

All Child Personal Information, except for Device information and location services, is provided by the Parent ("Admin User") upon creation of a TickTalk App account. There are two types of storage for Personal Information:

- **Locally on your Child's TickTalk Device** which we cannot view and/or access

We will only access this information if given permission by the Parent and/or Guardian and is needed for troubleshooting purposes. Child Personal Information TickTalk Tech LLC can view and/or access from the TickTalk App and/or Devices include:

Device Information including:

- Date and/or Time of Device Activation
- TTID Device Identifier
- IMEI Device Identifier
- Device Time Import if Parent and/or Guardian enlisted TickTalk Tech LLC's assistance in manually importing and/or activating Device information

Parent-Approved App Users ("Contacts") including:

- TTID Device Identifier
- App User Name (Email or Phone Number) as entered by the App User ("Contact")
- Date and Time of Contact Approval
- Administrator Status to identify if the "Contact" is an Admin User

Pedometer Information including:

- Daily Total Steps

Device Phone Book Contacts including:

- Contact Profile Picture as saved by the Parent ("Admin User")
- Contact Name as saved by the Parent ("Admin User")
- Contact Phone Number as saved by the Parent ("Admin User")

Precise Device Location including:

- Last Locating Date and Time
- Last Activity Date and Time
- Latitude and Longitude of Device

Child Account Information including:

- Child Name and/or Nickname as entered by the Parent ("Admin User")
- Device Phone Number as entered by the Parent ("Admin User")
- Child Gender as entered by the Parent ("Admin User") (optional)
- Child Date of Birth as entered by the Parent ("Admin User") (optional)
- Device Do Not Disturb times including title, start time, end time, and recurring days
- Device Reminders including start time, end time, and recurring days

Device Status including:

Cellular Carrier APN

Device tOS (Operating System) Version

Device Information including MC, MNC, Network Type, Resolution, Available Capacity, Total Capacity, etc.

- TickTalk App Parental Control Settings with the option for TickTalk Tech LLC to remote enable/disable with permission of the Parent (“Admin User”) including:
- Enable and/or Disable FaceTalk Video Calling
- Enable and/or Disable FaceTalk Video Calling under Wi-Fi only
- Enable and/or Disable your Child’s TickTalk Device Dial Pad
- Enable and/or Disable your Child’s TickTalk Device Calculator
- Enable and/or Disable your Child’s TickTalk Device Firewall to block unknown numbers and/or contacts from contacting your Child’s TickTalk Device
- Enable and/or Disable your Child’s TickTalk Device from powering off manually
- Command your Child’s TickTalk Device to manually report the Device’s current precise location to update in the TickTalk App with the consent of the Parent ("Admin User")
- Remotely perform a manual Reset, Reboot, or Powering Off of your Child’s TickTalk Device with the consent of the Parent ("Admin User")

- Remotely Lock and/or Unlock your Child's TickTalk Device with the consent of the Parent ("Admin User")
- View and change Daily Music Limits with the consent of the Parent ("Admin User")

Local Child Personal Information is data stored locally on your Child's TickTalk Device and is not viewable or accessible by TickTalk Tech LLC. Personal Information stored locally includes:

- Child User Photo and/or Avatar as entered by the Parent ("Admin User")
- Child Taken Photographs and/or Videos
- Child Message Content
- Child Voice Call and Video Call Records and/or Content
- Child Recorded Voice Recordings
- Greeting Card Content (which may contain Personal Information)
- Child's music listening trends from iHeartRadio Family including content that was listened to or favorites

What Children's Information is Visible to Contacts from the TickTalk App?

It is our policy to protect the identity of Children while using TickTalk Devices and to give the Parent and/or Guardian complete transparency into what your Child's Contacts can access. Parent-Approved Contacts can view the below personal information:

- **Child's Name and/or Nickname:** Your Child's name is used for messaging, video calling, phone calls, and/or Greeting Cards sent to/from Parent-Approved App Users ("Contacts"). Parents and/or Guardians can opt to put in First Name, Nickname, or a non-identifying text as a placeholder.
- **Child's Location**: Parents and/or Guardians and other Parent-Approved App Users ("Contacts") who have been granted Full Access by the Parent ("Admin User") will be able to view your Child's current precise and past precise locations (if History Route is enabled) through the TickTalk App.

given parental consent to view your Child's real-time, precise location. The Parent ("Admin User") can revoke or limit access levels at any time through the TickTalk App Settings > Approved App Users.

- **Message Content**: Your Child can exchange message content, photos, voice recordings (which may contain Personal Information), GIFs, and emojis through the Secure Messaging Center with Parent-Approved App Users ("Contacts") or other TickTalk Devices that were added using the Add Friends feature. Parent-Approved App Users ("Contacts") and the Parent ("Admin User") can only view message content that was shared directly with them by your Child. Message content is stored locally on your Child's TickTalk Device and any message content with Parent-Approved App Users ("Contacts") is stored on your TickTalk App under Messages or Group Chats.
- **Child's Photo or Image**: Your Child can take and share photos with their TickTalk Device. The photo will be stored locally on your Child's TickTalk Device and your Child can share the photo with the Parent ("Admin User"), Parent-Approved App Users ("Contacts"), and other TickTalk Devices that were added using the Add Friends feature through the Secure Messaging Center. Your Child's photo and/or image will also appear if the Parent ("Admin User") saved a User Profile Image upon creation of your Child's Account. Children cannot make any data or Personal Information publicly available and your Child's image will not be available to the public on TickTalk's Website, Services, or to any Non-Approved Contacts.

If a Parent would like to edit or remove their Child's Personal Information from the TickTalk App and/or Devices, they can log in to their TickTalk App account and change the name to a non-identifying nickname, revoke access to Parent-Approved App Users ("Contacts"), or delete the account by visiting the TickTalk App > Settings > System Reset. Please see the *Parental Choices & Parental Consent* section for more details.

How Long Does TickTalk Keep Children's Information?

We will not retain a Child's Personal Information for any longer than is necessary to provide the Service for which we receive or collect your Child's Personal Information, for research purposes, or legal obligations. Data is stored for one (1) year unless an account is deactivated by the Parent ("Admin User"), in which case the information will be deleted immediately. Additionally, we only keep a Child's Personal Information for as

We perform an annual audit of Personal Information and will remove all Child Personal Information and data including Historical Locations for Child Accounts that are inactive and have not been deactivated.

Types of Information We Collect

The types and amounts of information collected will vary depending on whether the User is a Parent and/or Guardian, Customer (e.g. someone who purchases our products), or Child using a TickTalk Device. We collect three types of information:

- Information that you may choose to voluntarily provide us while using the Services (described below under *Information You Provide to Us*).
- Information collected automatically as a result of your use of the Services (described below under *Information Collected Automatically*).
- We may also receive information about you from third-party sources such as your Device's precise location while using Google Geo Maps technology.

All Personal Information provided to us, except for location services, will be provided by the Parent, Guardian, or an Adult Age 18+. We will not ask for Personal Information from your Child without prior parental consent. Any Child created Personal Information (such as voice recordings, photos, message content, or videos) will not be viewable to us and is only available A) locally on your Child's TickTalk Device or B) when shared with Parent-Approved App Users ("Contacts") in the TickTalk App.

Information You Provide to Us

We ask for and collect the following Personal Information when you use the Service. This information is necessary for the adequate performance of the services between you and us, to provide and improve our Services, and to comply with our legal obligations. Without this information, we would not be able to provide our Services.

There are currently four categories of users on our various Services:

- Parents and/or Guardians
- Children

Additionally, as a non-logged in general visitor to the TickTalk Website for Customers (Age 18+) you may provide Personal Information to us. If you are using the TickTalk App, we may ask you for certain mobile app permissions.

Information Provided by Parents and/or Guardians

- **Parent ("Admin User") Account Sign-up and Profile Information**: As a Parent and/or Guardian, you will be prompted to sign-up for an Admin Account and Child Account on the TickTalk App to activate and use your Child's TickTalk Device. You will be asked to provide some basic information for yourself including:
- Name and/or Nickname
- Email Address and/or Phone Number which will be used as your login method
- Password
- Relationship to the Child (e.g. mother).

The information provided during the registration process is used to create a TickTalk App Admin Account which will be the source of communication with your Child's TickTalk Device. Parent ("Admin User") profiles are not viewable by the general public or Non-Approved App Users. If you create an account on TickTalk Services, we may email you as further set forth under the section entitled *Communications from TickTalk*.

- **Sharing Child's Personal Information with Parent-Approved App Users ("Contacts")**: As a Parent and/or Guardian, you may invite others to download the TickTalk App to communicate with your Child and become a Parent-Approved App User ("Contact"). Once the Contact has been approved by the Parent ("Admin User") as an Approved App User ("Contact"), the information you provide in the "name" box upon creating an account will be visible. If the Parent ("Admin User") has not entered any information into the "name" box upon creating an account, the Device IMEI number will be visible without any personal identifying information.
- **Parent-Approved App Users ("Contacts") Under The Age of 13**: A Child under the age of 13 may download the TickTalk App on their personal cell phone to request to be a Parent-Approved App User ("Contact") and communicate with another Child who owns a TickTalk Device. Any App Users under the age of 13 will be required to

Approved App User ("Contact") under the age of 13 would be asked to provide their personal:

- Name and/or Nickname
- Email Address and/or Phone Number which will be used as the login method
- Password (TickTalk does not have access to this information)
- Date of Birth to trigger parental notice and consent methods
- Relationship to Child or TickTalk Device User
- Parent's Email Address for Parental Consent before creating a TickTalk App account
- **Child Photos and/or Images**: As a Parent ("Admin User"), you may elect to upload your Child's photo to serve as their profile image. The photo that you upload on behalf of your Child will be shown with your Child's name and/or nickname to Parent-Approved App Users ("Contacts").

Parents should be aware that the information the Parent ("Admin User") places in the name box and profile picture when registering your Child's Account are accessible to your Parent-Approved Contacts. Therefore, that information or content could be collected, used, and disclosed by others who you, the Parent ("Admin User"), have approved as Parent-Approved Contacts. We are not responsible for the collection, use, or disclosure of such information or content by others.

Information Provided by Website Customers (Purchasers of Product) Age 18+

Online shoppers on the TickTalk Website must be over eighteen (18) years of age and must use a valid credit card or other valid payment method accepted by us to purchase products online. When an online order is placed, we collect customer information associated with the transaction, such as:

- First and Last Name
- Billing Address
- Phone Number
- Products Ordered
- Shipping Addresses

We ask for this information so that we may fulfill the order. We will send a confirmation email to the email address provided after the order is successfully placed. Credit card or other payment information is never shared with third parties, except those subprocessors needed to fulfill the transactions. We encourage you to read through our full list of Third Party Subprocessors for more information.

Post-Purchase Information Provided by Customers (Age 18+)

- **Reviews**: Any visitor to the TickTalk Website may provide post-purchase review information to TickTalk Tech LLC, such as a review with a photo. This testimonial information may include name and information typed in a review (which may contain Child Personal Information).
- **Contact Information:** Additionally, any visitor to the TickTalk Website, may choose to voluntarily provide additional Personal Information through the Service, such as your name, email address, and telephone number, to request technical support or information from us. For example, if you email us with a question, submit an inquiry form on our “Contact” page, or sign up for our newsletter. When you send us a message using the "Contact Us" page or via email, the email addresses and phone numbers collected may be used for internal marketing purposes.

Users of the Service should be aware that any Personal Information that is posted on the Service (such as your review along with your name and a testimonial photo) is accessible to other users of the Website and could be collected, used, and disclosed by others. We are not responsible for the collection, use, or disclosure of such information or content by others.

Information Collected Automatically

Information Collected Automatically from Children

TickTalk Devices will automatically collect Non-Personal Collective Information including:

- TickTalk Device Specific Identifiers such as Device IMEI number
- TickTalk Device Time and Usage Habits

- TickTalk Device Precise Location

We do collect precise geolocation data from Children and the TickTalk Device will continuously collect information about the physical location when activated. We will not store or track your device location on an ongoing basis without your permission. We do not share precise geolocation data with third parties or advertisers. You may not disable location-based data collection from the TickTalk Device and/or Services and we will only access this information if given parental permission for troubleshooting purposes.

Information Collected Automatically from Customers and/or Users Age 18+

Like most web-based services, we (or our subprocessors) may automatically collect information from your browser or your device when you use the TickTalk Website or TickTalk App. This information is necessary to improve performance and troubleshoot our Service and the TickTalk Website. It is possible at times when collecting Non-Personal Information through automatic means that we may unintentionally collect or receive Personal Information that is mixed in with Non-Personal Information. While we make efforts to prevent this type of incidental data collection, the possibility does exist. If we happen to combine any automatically-collected information with Personal Information, we will treat the combined information as Personal Information, which will be protected by this Privacy Policy.

The technologies and information we automatically collect include:

- **Cookies and other similar technologies**: “Cookies” are pieces of information that may be placed on your personal device to facilitate and enhance your communication and interaction with that Service. We may use cookies (and similar items such as clear gifs, web beacons, tags, etc.) to customize your experience, make your visit more convenient, or enable us to enhance the TickTalk Service. We may also use and place cookies on your device from our third-party service providers in connection with the TickTalk Service, such as an analytics provider, including Google Analytics which uses ClientID that is recognized by the CCPA as a persistent identifier, that helps us manage and analyze TickTalk Service usage. You may stop or restrict the placement of cookies by adjusting your web browser preferences, in which case you may still use our TickTalk Services, but some of the

knowledge. Cookies are device and browser-specific, so if you make a change to your environment, we may reinstall a cookie.

- **Local storage:** We may collect, use and store information (including Personal Information) and preferences locally on your device using mechanisms such as browser local storage and application data caches. Third parties with whom we partner to provide certain features on our website also may use HTML5 or other local storage to collect and store information.
- **Device information and/or configuration:** We may collect device-specific information such as your device type, device brand, operating system, hardware version, device settings, file and software names and types, and unique device identifiers. This helps us measure how the Service or TickTalk Website is performing and improve the Service and TickTalk Website for you on your particular device.
- **Mobile application information:** Certain mobile applications or "Apps" include a unique application number. This number and information about your installation (for example, the operating system type and application version number) may be sent to us when you install or uninstall that application or when that application periodically contacts our servers, such as for automatic updates. Additionally, we may receive application state and crash log information which will help with "debugging" and for improvement of the TickTalk App.
- **Location information:** When you use our Service or browse the TickTalk Website, we may collect and process information about your geographic location, for example through an IP address. We collect both coarse (i.e., city-level) location data and precise location data (if using our TickTalk App).
- **Server log data:** Like most online services, when you use the TickTalk App or Website, even if you have not created an account or logged in, we automatically collect and store certain information in our server log files. Examples include things like:
- Details of how you used our Service or the TickTalk Website, such as your activity on the Service or the TickTalk Website, and the frequency and duration of your visits to the TickTalk Website or TickTalk App
- IP Address
- Device event information such as crashes, system activity, hardware settings, browser type, browser language, the date and time of your request, and referral

may link your identifiers on different browsers and environments to be able to provide a seamless experience across multiple devices and browsers without collecting or processing any additional identifying personal data.

This information helps us make future product decisions, for example, which features are most or least popular. We may use your IP address and share it with subprocessors to help diagnose problems with our Service, for security purposes, to manage the Service, and to enhance the Services or TickTalk Website based on usage patterns for analytics.

Information Received from Third Party Sources

If we receive adult Personal Information from third parties, we will handle it in accordance with this Privacy Policy. If we directly combine information we receive from other third parties with Personal Information that we collect through the Service or TickTalk Website, we will treat the combined information as Personal Information and handle it in accordance with this Privacy Policy. We do not control, supervise, or respond to how third parties providing your information process your Personal Information and any information request regarding the disclosure of your Personal Information should be directed to the specific parties. We encourage you to read through our full list of Third Party Subprocessors for more information.

How We Use the Information We Collect

We do not sell or rent any of your or your Child's Personal Information to any third party for any purpose, including for advertising or marketing. Third-party advertising is not permitted on our Service and Personal Information collected from Children is never used for behaviorally-targeted advertising to Children. We will only use your information, including Personal Information, collected through our Service for the purposes described in this Privacy Policy, unless you have specifically consented to another type of use, either at the time the information was collected or through another form of consent or notification. We may use the information, including Personal Information, from adult users we collect to:

- Provide and/or personalize the TickTalk Services, Website, Devices, or content and experiences for you

- Respond to your emails, questions, requests, complaints and provide customer service
- Send you information about new features or changes to our Service or policies
- Optimize or improve the TickTalk Website, Devices, Services, and operations and develop new products
- Develop and enhance our products and services with the use of aggregated data or de-identified data to use for research and development purposes provided that any disclosures of such data do not specifically identify you, your Child, your Child's TickTalk Device, and/or your precise location
- Send you security alerts and support messages and otherwise facilitate your use of the Service and TickTalk Website
- Combine with data from other sources outside of your use of the TickTalk Service, such as data obtained from Wi-Fi access points within range of your Child's TickTalk Device
- For safety and security reasons, such as detecting, investigating, and preventing activities that may violate our policies or be illegal
- Provide Parents with information about announcements, offers, promotions, and new products
- For any other purpose for which the information was collected such as fulfilling product orders

We process this information to improve the TickTalk Website, the Service, and our users' experience with it, protect the Service and the TickTalk Website, and comply with applicable laws.

We will process your Personal Information with the legitimate interest of offering your new products or services that may be of interest to you. You may opt out of receiving marketing communications from us by unsubscribing to email marketing or by changing your notification settings in your TickTalk App account.

Sharing Your Information

We will never sell or rent you or your Child's Personal Information to any third party for any purpose, including advertising or marketing purposes. Third-party advertising is

manner consistent with this Privacy Policy unless you have specifically consented either at the time that information was collected or through another form of consent or notification. We do not share Personal Information with any third parties except as set forth below:

- **Other Users You Share and Communicate with on the TickTalk App:** If you are a Parent, Guardian, or App User, you may choose to share information or content through the TickTalk App with other Parent-Approved Contacts, to your Child, or with Contacts added using the Add Friends feature. Please keep in mind that information (including your Child's Personal Information) or content (such as Photos) that you voluntarily disclose to others, including to other TickTalk App Users you interact with through the TickTalk App (such as messages you might send) - can be viewed, copied, stored, and used by the people you share it with. We do not have control over how people you share your information with will use that information.
- **Third-Party Integrations on our Service:** When, as a Parent, Guardian, or Customer over 18 years old, you use third-party apps, websites, or other services that use, or are integrated with, our TickTalk Website or Service, they may receive information about your device. Information collected by third-party integrations is subject to their specific terms.
- **Subprocessors:** We do work with vendors, subprocessors, and other partners such as Amazon's AWS Cloud Server to help us provide the Service and TickTalk Website. We may need to share or provide Personal Information to help them perform necessary functions. These subprocessors have limited access to your Personal Information to perform these tasks on your behalf and are contractually bound to protect, use only for the purpose for which it was disclosed, and must adhere to confidentiality and security obligations that are consistent with this Privacy Policy.
- **Aggregated Information and Non-Identifying Information:** We may share aggregated information (information about our users that we combine so it no longer identifies an individual user) and other de-identified, or non-personally identifiable information with partners, sponsors, or the press to, for example, demonstrate how TickTalk Devices and/or Services are used, spot industry trends, or to provide marketing materials. Any aggregated information will not contain any identifiable Personal Information.

information to help us understand how often the services are being used, feature usage, performance, and where geographically the application was downloaded.

- **Legal Requirements:** We may use or disclose information, including Personal Information, if we have a good faith belief that doing so is necessary to comply with the law, such as complying with a subpoena or other legal process. We may need to disclose Personal Information where, in good faith, we think it is necessary to protect the rights, property, or safety of TickTalk Tech LLC, our employees, and other Service users, or to prevent violations of our policies. This includes, without limitation, exchanging information with other companies and organizations for fraud protection or responding to government requests. Where appropriate, we may notify users about the legal requests, unless (i) providing notice is prohibited by the legal process itself, by court order we receive, or by applicable law; (ii) providing notice would be ineffective, create a risk of injury to any individuals, or create or increase fraud risk. In instances where we comply with legal requests without notice for these reasons, we will attempt to notify that user about the request after the fact where appropriate and where we determine in good faith that we are no longer prevented from doing so.
- **Change of Control:** Over time, TickTalk Tech LLC may grow. We may share your Personal Information with business affiliates such as parent companies, companies we control, subsidiaries, or joint venture partners. If we do share your Personal Information, those affiliates would be required to protect your information as consistent with this Privacy Policy. In the event of a change to our organization such that all or a portion of TickTalk Tech LLC or its assets are acquired by or merged with a third party, or in any other situation where Personal Information that we have collected from users would be one of the assets transferred to or acquired by that third party, this Privacy Policy will continue to apply to your information, and any acquirer would only be able to handle your Personal Information per this policy (unless you give consent to a new policy). We will provide you with notice of an acquisition within thirty (30) days following the completion of such a transaction, by posting on our homepage and by email to your email address that you provided to us. If you do not consent to the use of your Personal Information by such a successor company, subject to applicable law, you may request its deletion from the company. In the unlikely event that TickTalk Tech LLC goes out of business, or files for bankruptcy, we will protect your Personal Information, and will not sell it to any third party.

never sell or rent your Personal Information to advertisers or other third parties.

Third-Party Services

TickTalk Devices and/or TickTalk Parental Control App

We do not share any Child Personal Information with third-party services. All TickTalk Services including TickTalk Devices and the TickTalk Parental Control App are managed and maintained internally by TickTalk Tech LLC without the aid or assistance of third parties. If a third party technology is used on our Services, such as iHeartRadio Family, we integrate the third party API into our backend to ensure our data collection, usage, and protection are in line with this Privacy Policy.

We do use Amazon's AWS Cloud Computing Services to remotely store Child Personal Information that has gone through end-to-end encryption. All Personal Information and Data will go through encryption before being sent and we will never share Personal Information without encryption.

It is important to us that you have full transparency over the third-party services we work with and the specific information they have access to. We encourage you to read through our full list of Third Party Subprocessors for more information.

Gigs Wireless, LLC (Cellular Service Provider)

TickTalk Tech LLC provides a free TickTalk Wireless SIM card with every purchase for U.S. customers provided by Gigs Wireless, LLC. Gigs Wireless, LLC provides cellular service for TickTalk Devices, similar to your personal cellular provider on your personal cell phone.

Upon receiving a TickTalk order, the Parent and/or Guardian will be prompted to activate the included SIM card here where they will create a parent account, select a monthly plan, and enter payment information. Gigs Wireless, LLC will then provide a cellular phone number for your Child's TickTalk Device. Gigs Wireless, LLC has access to the information necessary to provide cellular service on your Child's TickTalk Device.

Gigs Wireless, LLC will be able to access:

- Your Child's Gigs Wireless, LLC SIM Card ICCID Identifying Number
- Your Child's Device Phone Number

- Your Child's Device Voice Call Logs at Network Level including Call Duration, Other Party Phone Number, and Time Stamps for Billing Purposes
- Your Child's Device SMS Text Logs at Network Level including Other Party Phone Number and Time Stamps for Billing Purposes
- **NOTE**: TickTalk Devices do not use SMS texting and rely on in-app messaging over data. Gigs Wireless, LLC will be able to view SMS *requests* which are not shown on TickTalk Devices, but Parents and/or Guardians can view in the TickTalk App under Blocked Watch SMS Texts.

For Parents and/or Guardians who have created and set up a TickTalk Wireless phone number for your Child's TickTalk Device, Gigs Wireless, LLC will be able to view:

- Billing Name & Address as provided by the Parent and/or Guardian
- Email Address as provided by the Parent and/or Guardian
- Payment Information as provided by the Parent and/or Guardian

Red Pocket (Cellular Service Provider)

TickTalk Tech LLC provides a free SIM card with every purchase for U.S. customers provided by Red Pocket. Red Pocket provides cellular service for TickTalk Devices, similar to your personal cellular provider on your personal cell phone.

Upon receiving a TickTalk order, the Parent and/or Guardian will be prompted to activate the included SIM card with Red Pocket directly where they will create an account, select a monthly plan, and enter payment information. Red Pocket will then provide a cellular phone number for your Child's TickTalk Device. Red Pocket has access to the information necessary to provide cellular service on your Child's TickTalk Device.

Red Pocket will be able to access:

- Your Child's Red Pocket SIM Card ICCID Identifying Number
- Your Child's Device Phone Number
- Your Child's Device IMEI Identifying Number
- Your Child's Device Data Usage

- Your Child's Device SMS Text Logs at Network Level including Other Party Phone Number and Time Stamps for Billing Purposes
- **NOTE**: TickTalk Devices do not use SMS texting and rely on in-app messaging over data. Red Pocket will be able to view SMS *requests* which are not shown on TickTalk Devices, but Parents and/or Guardians can view in the TickTalk App under Blocked Watch SMS Texts.

For Parents and/or Guardians who have created and set up a Red Pocket phone number for your Child's TickTalk Device, Red Pocket will be able to view:

- Billing Name & Address as provided by the Parent and/or Guardian
- Email Address as provided by the Parent and/or Guardian
- Payment Information as provided by the Parent and/or Guardian

TickTalk Website & Third Party Services (Customers Age 18+)

The TickTalk Website may contain links to websites and services provided by third parties. Any Personal Information you, as an adult over 18 years of age, provide on third-party websites or services is provided directly to that third party and is subject to their privacy and security policies. This Privacy Policy does not apply to these websites or services. If we link to a website, this is not an endorsement, authorization, or representation that we are affiliated with that third party, nor is it an endorsement of their privacy or information security policies or practices. These other websites may place their own cookies or other files on your computer, collect data or solicit Personal Information from you. We are not responsible for the content or privacy and security practices and policies of third-party websites or services. We encourage you to learn about third parties' privacy and security policies before providing them with Personal Information.

It is important to us that you have full transparency over the third-party services we work with and the specific information they have access to. We encourage you to read through our full list of Third Party Subprocessors for more information.

California Consumer Privacy Act

(CCPA) in its entirety, please visit our Privacy Center.

Our Privacy Center describes your rights as a California resident including but not limited to:

- Information We Collect
- Information You Provide To Us
- Information Collected Automatically
- Information From Other Sources
- How Long We Keep Your Data
- How We Share And Disclose Information including Information Disclosed for Business or Commercial Purposes in the Last 12 Months and Categories of Parties Disclosed To
- Collection and Disclosure of Personal Information
- Business. andCommercial Purposes for Collection
- Information "Sharing" and "Selling"
- CCPA Rights including Your Right to Know, Right to Delete, Right to Non-Discrimination, and Right to Opt-Out
- Request Verification
- Authorized Agent
- Contact
- Notice of Financial Incentive

Opt-Out

You have the right to opt-out of third party sharing of your personal information. You may exercise any of the rights described in this section by contacting us at privacy@myticktalk.com or making a request in our Privacy Center. We will ask you to verify your identity before taking any action on your request.

Transparency and Your Rights

correct, or delete this information at any time. You may also object, restrict, or withdraw consent where applicable for the use of Personal Information you have provided to us. We also make the Personal Information you share through our Service or the TickTalk Website available and provide easy ways for you to contact us.

You may exercise any of the rights described in this section by contacting us at privacy@myticktalk.com or making a request here. We will ask you to verify your identity before taking any action on your request.

Accessing, Managing, or Correcting Your Personal Information

Our goal is to provide you full transparency and easy access to any Personal Information we have collected about you or your Child. If that information is incorrect, you may update and/or delete it, unless we need to keep that information for legitimate business (e.g., email address and/or phone number for your Parent Account) or legal purposes. You have the right to correct inaccurate or incomplete Personal Information concerning you or your Child (and which you cannot update yourself within your TickTalk App and/or Device Account).

- **Accessing Your Information:** Upon request, we can provide you with information about whether we hold any of your Personal Information. You may also request access to all of your Personal Information controlled by TickTalk Tech LLC by contacting us at privacy@myticktalk.com. In some cases, we may not be able to grant complete access for legality purposes, such as information that would contain information about other users or information that is confidential to TickTalk Tech LLC.
- **Managing Your Information**: If you have registered for an Admin Account on the TickTalk App, you may view, edit, or delete any of your profile information or your preferences at any time by logging into your TickTalk App account and accessing your account settings page. While your changes may be reflected immediately in your account, other users that have previously accessed the content may still have access to old copies cached on their device or may have copied and stored your content.
- **Accessing Your Child's Information:** If you have registered for a Child Account on the TickTalk App, you may view, edit, or delete any of your profile information or your preferences at any time by logging into your TickTalk App account and

your Child's TickTalk Device to factory settings, removing all Personal Information.

We may reject requests for access, change, or deletion that are unreasonably repetitive, require disproportionate technical effort (such as the requirement to develop an entirely new system), or risks the privacy of others. Any information we can reasonably access and correct, we will do so free of charge.

Object, Restrict, or Withdraw Consent

Where you have provided your consent to TickTalk Tech LLC for the processing of your Personal Information by us you may withdraw your consent at any time by changing your account settings or by sending a communication to us at privacy@myticktalk.com specifying which consent you are withdrawing or by making a request in our Privacy Center.

Deleting Your Account

If for some reason you ever want to delete your account or your Child's Account, if you are the Parent and/or Guardian, you can do so at any time:

- **To Deactivate/Delete Your Parent ("Admin User") App Account**: You may at any time deactivate or delete your Parent ("Admin User") App Account by visiting the TickTalk App under Settings > My App > Account Deactivation.
- **To Deactivate/Delete An Approved App User (Contact)**: You may at any time deactivate or delete an Approved App User (Contact) by visiting the TickTalk App under Settings > My TickTalk > Approved App Users > Unbound. You may also change the individual access level (Full Access or Limited Access) of an Approved App User at any point by visiting the TickTalk App under Settings > My TickTalk > Approved App Users.
- **To Deactivate/Delete Child Account:** You may at any time deactivate or delete your Child's TickTalk Device account by visiting the TickTalk App under *Settings > My TickTalk > Enable Watch Features > Deactivate Watch* and toggling on.
- **To Perform A System Reset On Your TickTalk Device:** You can perform a system reset on your Child's TickTalk Device by visiting the TickTalk App under Settings > My TickTalk > System Reset. You can also reset your Child's TickTalk Device locally by

When you delete your Parent or Child account, we delete all profile information and any other content you provide in your profile (such as your name and/or nickname, password, email address, phone number, and profile photos), data (such as message content, phone book contacts, and App Users Contacts) and information collected through mobile permissions you've granted.

To delete your Child's TickTalk Device account, the Parent and/or Guardian can perform a System Reset from the TickTalk App and unbound your Child's TickTalk Device from the TickTalk App to reset to factory settings without any Child Personal Information. Any Personal Information that you have shared with Parent-Approved Contacts or content your Contacts may have copied and stored is not a part of your account and may not be deleted when you delete your account.

We aim to protect your information to safeguard you from malicious or accidental destruction. Because of this, even after you update or delete Personal Information you have provided us from our Service or the TickTalk Website, your Personal Information may be retained in our backup files or archives for a reasonable period of time for legal purposes or for so long as is necessary in light of the purposes for which such records were collected or legitimately further processed.

Destroying & Deleting Personal Information

We can delete and destroy data with consent from the Parent and/or Guardian if they are the Admin User, or the first person to pair with the TickTalk Device. In this case, we would take the following steps to confirm the person requesting to review or delete your Child's data is the Parent and/or Guardian including:

- Verifying the purchase within our TickTalk Website or Amazon Marketplace
- Verifying the individual contacting us is the Admin User or the first person to pair with the TickTalk Device
- Verifying the TickTalk Device IMEI and/or TTID identifying number

If the individual contacting TickTalk Tech LLC verifies their identity as the Parent and/or Guardian of the Child User of the TickTalk Device, we can:

- Unbound all Parent-Approved App Users (“Contacts”)
- Deactivate the Device to prevent any further communication with the TickTalk Device

Once we have performed these steps, all Child Personal Information, Parent and/or Guardian Personal Information, and Parent-Approved Contacts Personal Information will be immediately deleted and destroyed from our backend as well as on the TickTalk App and Device.

Data Security

The security of your Personal Information is important to us. To prevent unauthorized access, disclosure, or improper use of your information, and to maintain data accuracy, we've established physical, technical, and administrative safeguards to protect the Personal Information we collect. In particular:

- We periodically review our information collection, storage, and processing practices, including physical security measures, to guard against unauthorized access to systems.
- We perform application security testing, penetration testing, conduct risk assessments, and monitor compliance with security policies. These vulnerability tests are performed for every TickTalk App and TickTalk Device operating system (OS) update, typically occurring every other month to quarterly.
- When you enter any information anywhere on the Service, we encrypt the transmission of that information using secure socket layer technology (SSL) by default.
- TickTalk Tech LLC's database where we store your Personal Information is encrypted at rest, which converts all Personal Information stored in the database to an unintelligible form.
- We ensure passwords are stored and transferred securely using encryption and salted hashing.
- TickTalk's Website and the Service are hosted by third-party subprocessors at separate facilities, with whom we have a contract providing for enhanced security measures.

subject to strict confidentiality obligations and may be disciplined or terminated if they fail to meet these obligations.

Although we make concerted good faith efforts to maintain the security of Personal Information, and we work hard to ensure the integrity and security of our systems, no practices are 100% immune, and we can't guarantee the security of information due to the inherent open nature of the Internet and wireless communications. We cannot guarantee that your personal information will be completely free from unauthorized access by third parties, such as when transferred over or through systems not within our exclusive control. Your use of the TickTalk Services demonstrates your assumption of this risk. Outages, attacks, human error, system failure, unauthorized use, or other factors may compromise the security of user information at any time.

If we become aware of a systems security breach by an unauthorized party or that any user data was used for an unauthorized purpose, we will comply with relevant state and other data breach laws. We will notify users of any breach resulting in an unauthorized release of data electronically, at minimum, and without unreasonable delay so that you may take appropriate steps. The notification will include the date of the breach, types of information that were subject to the breach, a general description of what occurred, and steps TickTalk Tech LLC is taking to address the breach. We may also post a notice on the TickTalk Website or elsewhere on the Service, and may send an email to you at the email address you have provided to us.

Data Retention

We store your Personal Information for as long as it is necessary to provide our Devices and Services to you. Personal Information associated with your account will be kept until your account is deleted. We perform an annual audit of Personal Information and will remove all Child Personal Information including Historical Locations for Child Accounts that are inactive and/or have not been deactivated.

Please note that we may have to retain some information after your account is closed, to comply with legal obligations, to protect the safety and security of our community or our Service, or to prevent abuse of our Terms. You can, of course, delete your account at any time, as per the *Deleting Your Account* section.

30-Day Money-Back Guarantee

create a Parent and Child Account and at a later date decides to no longer use the Device, they can return the Device for a full refund within thirty (30) days of purchase from an authorized seller such as our Website (www.myticktalk.com), Amazon, and/or Walmart Marketplace.

Communications from TickTalk

We will never contact a Child directly and do not market or advertise to Children in any way, shape, or form. All communication from TickTalk Tech LLC will be sent to individuals 18+ years of age. If the Parent and/or Guardian created an account on the TickTalk App and/or Website, provided an email or phone number to us, or otherwise opted-in to receive communications from us, we may send the Parent and/or Guardian messages and updates regarding your account, including privacy and security notices, updates regarding the Service, and information regarding products, features or services from TickTalk Tech LLC.

These communications may include, but are not limited to, social media communications, SMS texts (if you have opted in to receive), push notifications through the TickTalk App, emails, telephone calls, and/or postal mail. If you have a TickTalk App account with us, we may use your email address to contact you for customer service purposes or legality purposes. We do receive a confirmation when you open and/or click an email from us, which we use to improve future communications.

You can always unsubscribe from receiving any of our: 1) marketing emails at any time by clicking the "Unsubscribe" link at the bottom of any TickTalk Tech LLC email; 2) marketing texts by replying "STOP" if you receive SMS communications; or 3) push notifications by turning off push notifications on your device. Also, you may indicate your preferences regarding marketing emails by contacting us at marketing@myticktalk.com. Please note that opting out of marketing communications does not affect your receipt of business communications that are important to your interaction with TickTalk Tech LLC, such as support/service communications, security updates, or account management communications. You may not opt out of receiving these communications.

Marketing Opt-Out (Age 18+)

In some jurisdictions, applicable law may entitle you to require TickTalk Tech LLC not to process your Personal Information for certain specific purposes (including profiling) where such processing is based on legitimate interest. If you object to such processing, we will no longer process your Personal Information for these purposes unless we can demonstrate compelling legitimate grounds for such processing or such processing is required for the establishment, exercise, or defense of legal claims. Additionally, in some jurisdictions, applicable law may give you the right to limit how we use your Personal Information, in particular, where (i) you contest the accuracy of your Personal Information; (ii) the processing is unlawful and you oppose the erasure of your Personal Information; (iii) we no longer need your Personal Information for the processing, but you require the information for the establishment, exercise or defense of legal claims; or (iv) you have objected to the processing and pending the verification whether the legitimate grounds of TickTalk Tech LLC override your own.

SMS Consent

When you subscribe to our SMS notifications, we collect your phone number and any additional information you choose to provide. This information is used to send you SMS messages related to order updates, promotions, and other marketing communications from TickTalk Tech LLC. You may opt out of our SMS notifications at any time by replying "STOP" to any message you receive from us. After you opt out, you will no longer receive SMS messages unless you re-subscribe.

In addition, you agree to our Messaging Terms (https://terms.pscr.pt/legal/shop/my-ticktalk/terms_of_service) and Messaging Privacy Policy (https://terms.pscr.pt/legal/shop/my-ticktalk/privacy_policy).

Changes and Updates to this Privacy Policy

We may revise our Privacy Policy from time to time, which will always be noted at the top of the page as the last updated date. We will never reduce your rights under this Privacy Policy without your explicit consent. If we make any significant changes, we'll provide prominent notice by posting a notice on the Service or the TickTalk Website and/or notifying you by email (using the email address you provided).

parental consent and notice for any material changes to policy or new data collection practices.

We encourage you to review this Privacy Policy from time to time, to stay informed about our collection, use, and disclosure of Personal Information through the Service and TickTalk Website. If you don't agree with any changes to the Privacy Policy, you may delete and/or deactivate your account at any time. By continuing to use the Service or the TickTalk Website after the revised Privacy Policy has become effective, you acknowledge that you accept and agree to the current version of the Privacy Policy.

United States of America

The Service and TickTalk Website is hosted, maintained, and operated in the United States. By using the Service or the TickTalk Website, you freely and specifically give us your consent to export your Personal Information to the United States and to store and/or use in the United States as specified in this Privacy Policy. We follow the Federal Trade Commission's (FTC) Children's Online Privacy Protection Act ("COPPA") rules for parental consent prior to a Parent and/or Guardian activating and setting up our Devices. You understand that data stored in the United States may be subject to lawful requests by the courts or law enforcement authorities in the United States.

For international users using the TickTalk Services, you further acknowledge that the United States may not have the same data protection laws as the country from which you provided your Personal Information and that TickTalk Tech LLC may be compelled to disclose your Personal Information to U.S. authorities. You have the right to withdraw your consent at any time by contacting us as described in the *Contacting TickTalk* section below.

Contacting TickTalk

If you have questions or concerns about this Privacy Policy or our collection, use, or disclosure of your Personal Information, please contact us in one of the following ways:

Email: privacy@myticktalk.com

Phone: 1-(844)-260-4051

Mailing Address:

565 West Lambert Road, Unit B
Brea, CA 92821

Contact Us:

Please visit our contact page.

Free U.S. shipping

1-year manufacturer warranty

30-day return for refund

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